

26PR00264 Matter of the Joshua Jeffries SNT

County: santa-barbara

Division: Trust

Department: 4 SM-Cook

Hearing date: 2026-07-27

Motion: Petition for Termination of Trust

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Tentative Ruling: Matter of the Joshua Jeffries SNT

Case Number

26PR00264

Case Type

Trust

Hearing Date / Time

Mon, 07/27/2026 - 08:30

Nature of Proceedings

Petition for Termination of Trust

Tentative Ruling

Probate Notes:

Appearances required.

Any Respondents desirous to object to the Petition, must file a written objection before the hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

The following must be submitted:

Proof of Service of Notice of Hearing (DE-120). The petition must be served on all beneficiaries 30 days before the hearing. Notice must also be served on all trustees and the Attorney General if the trust is a charitable trust. This Court may not shorten the time of notice. (Prob. Code, § 17203.)

Trust Instrument. A copy of the trust, and all accompanying amendments, must be submitted for review. (Local Rule, 1791(c).)

Supplement re: Evidence. The Court cannot terminate an irrevocable trust without evidence that the trust principal “is so low that continuation of the trust under its existing terms will defeat or substantially impair the accomplishment of its purposes.” (Prob. Code, §15408(a).) Evidence should be submitted with the Supplement in the form of account statements showing the current balance of the trust.

Verification. The petition is not verified. Petition must be verified by Petitioner. (Prob. Code, § 1021.)

Proposed Order (Local Rule, 1731.) – Petitioner must submit a proposed order outlining the exact relief requested in the petition.

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 24, 2026, it is recommended that the matter be continued to a date set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1701(b).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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